

MILPERSMAN 1160-030

ENLISTMENTS AND REENLISTMENTS UNDER CONTINUOUS SERVICE CONDITIONS

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References	(a) OPNAVINST 1160.8B (b) DoD Instruction 1215.07 of 30 July 2019 (c) NAVMED P-117, Manual of the Medical Department (d) BUPERSINST 1610.10F (e) 50 U.S.C. (f) OPNAVINST 6110.1K (g) Public Law 112-81 (h) 10 U.S.C. (i) COMNAVCRUITCOMINST 1130.8N (j) CNO memo 1040 Ser N13/045 of 18 May 22 (k) DoD Instruction 1304.31 of 5 November 2020 (l) OPNAVINST 1160.9A (m) DoD Instruction 1341.13 of 25 October 2022 (n) BUPERSINST 1900.8E (o) JAGINST 5800.7G
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1. **Purpose.** This article contains the general provisions governing certain enlistments and reenlistments in the Active Component (AC) or Reserve Component (RC) under continuous service conditions.

2. **Definitions**

a. **Continuous Service** - Service in the AC or RC that is continued by **reenlistment** under the following conditions:

(1) **Reenlistment.** If a member has previously served an enlistment in the AC (not including service as an inductee) or RC, the member's enlistment therein will be termed as a "reenlistment."

(2) **Reenlistment Within 3 Months Following Discharge or Release From AC or RC.** A member who is reenlisted on the same

day of the month, 3 calendar-months from date of discharge or release from the AC or RC, is considered to have reenlisted "within 3 months." Members reenlisting 3 months or less, prior to the expiration of enlistment or expiration of enlistment as extended, will be considered as having completed their current contract.

Example: A member discharged or released from the AC or RC on 7 December may be reenlisted on any day up to, and including, 7 March and retain continuous service.

(3) Reenlistment Within 6 Months Following Discharge or Release From the AC or RC. Provided a member has a reentry code of "RE-R1" (recommended for preferred reenlistment) in block 27 of the latest [DD-214](#) Certificate of Uniformed Service, and is reenlisted on the same day of the month, 6 calendar-months from date of discharge or release from the AC or RC, he or she is considered to have reenlisted "within 6 months." For conditions and entitlement to bonuses refer to reference (a).

(4) Enlistment (Under Continuous Service Conditions). Applicable to the enlistment of a member of the AC who enlists in the RC, or a member of the RC who enlists in the AC within the time frames defined in subparagraphs 2a through 2a(3) for "continuous service" after expiration of obligated service (EOS) or at any time prior to the EOS.

Note: Enlistment or reenlistment in the RC following discharge from the AC does not prejudice a member's right to reenlist under continuous service conditions in the RC, providing the member meets all eligibility requirements.

b. **Improper Reenlistments** - Reenlistments that occur without documented authorization from a commanding officer (CO) or an officer in charge (OIC). Refer to paragraph 18 for additional guidance.

c. **Creditable Service** - Years of service in the Military Services used in the computation of retirement eligibility.

(1) Creditable service for a regular retirement (active duty retirement) is calculated based on day-for-day of active duty served minus lost time. Any break in service, even under continuous service conditions, as described in subparagraphs 2a through 2a(4), is not considered to be creditable for active duty retirement computation.

(2) Creditable service for a non-regular retirement (Reserve retirement) is calculated by the number of qualifying years achieved. Any break in service, even under continuous service conditions as described in subparagraphs 2a through 2a(4), is not considered to be creditable for non-regular service retirement computation. Refer to reference (b) to determine what qualifies as a qualifying year.

3. Eligibility Requirements

a. Members reenlisting in the AC or RC must be:

(1) U.S. citizens;

(2) Noncitizen nationals; or

(3) Immigrant alien members who have been lawfully admitted into the U.S. under an immigrant alien visa for permanent residence.

(a) An immigrant alien who is presently serving satisfactorily in the AC or RC is eligible to reenlist in the Navy without being required to apply for U.S. citizenship.

(b) An immigrant alien who has been in the U.S. for 4 years beyond the age of majority, who has been lawfully admitted, and who holds an USCIS I-551 Permanent Resident Card is eligible for enlistment or reenlistment in the Navy without being required to apply for U.S. citizenship.

b. To be eligible for reenlistment in the AC or RC, members must have been separated from the AC or RC by reason of expiration of enlistment or active obligated service (OBLISERV), fulfillment of military service obligation (MSO), or convenience of the Government. Additionally, the member must:

(1) Be medically qualified per reference (c);

(2) Meet the eligibility standards prescribed, including high year tenure (HYT), as set forth in [MILPERSMAN 1160-120](#) for AC and Training and Administration of the Reserve (TAR) members, and [MILPERSMAN 1160-135](#) for all other RC members;

(3) Have been recommended by his or her CO for reenlistment, as shown on the member's retention recommendation on the last evaluation per reference (d); and

(4) Meet **professional growth criteria** as follows:

(a) Serving as a petty officer (pay grades E-4 through E-9); or

(b) Serving in pay grade E-3 and approved for a selective reenlistment bonus (SRB) or a change of branch class code (BRCL) from TAR (BRCL-32) to a qualified rating or Navy enlisted classification (NEC) code in the AC (BRCL-11); and

(c) At minimum, receive a "promotable" advancement recommendation and be recommended for retention per reference (d). "Not observed" evaluations are not considered graded.

c. Service performed under a reenlistment that immediately follows discharge is counted toward fulfillment of statutory MSO in cases of members who incurred such per reference (e), chapter 49 (Military Selective Service Act), as amended.

d. Be in compliance with physical fitness assessment (PFA) standards, reference (f).

e. Qualification for continued service should be based on the ability of a member to perform the functions of his or her rating, rate, or occupational specialty without physical or medical limitations at sea, shore, or isolated duty.

(1) The CO of a Navy medicine readiness and training command (NMRTC) is authorized to reenlist a member who is eligible and otherwise qualified, who so desires, and whose enlistment expires while in a patient status, provided it is anticipated that the member will be physically and otherwise qualified for full duty immediately upon discharge from hospitalization.

(2) Per reference (g), a member who has been found fit for continued naval service by a physical evaluation board (PEB) may not be denied reenlistment for the physical condition for which the member was reviewed and found fit by the PEB. Members must remain compliant with all other eligibility criteria identified in this article.

4. Term of Reenlistment

a. The term of reenlistment in the AC or RC will be for **at least 2 years, but no more than 6 years** (reference (h), chapter 31). The term of the reenlistment contract must equal or exceed the period of service for which already obligated. **In all cases**, members reenlisting 3 months or less, prior to the normal expiration of enlistment or enlistment as extended, will be considered as having completed their current contract.

b. Members are precluded from serving beyond their HYT per [MILPERSMAN 1160-120](#) (for AC and RC members), [MILPERSMAN 1160-135](#) (for all other RC members), or other management control directives and will be authorized to reenlist for terms as reflected in the appropriate directive. The term of reenlistment will be dependent upon the member's length of service and HYT.

c. TAR personnel must have a 24-month minimum Reserve active duty obligation (RADO) for reenlistment. TAR personnel who reenlist will require the RADO to be the same as the term of reenlistment. A RADO of less than 24 months must meet conditional extension criteria per [MILPERSMAN 1160-040](#).

d. Members initially enlisted in the AC and completing their statutory MSO in an RC capacity may reenlist, provided such enlistment is effected under continuous service conditions and the member meets all eligibility requirements previously discussed in this article.

5. Time Frames for Reenlistment

a. AC and RC members who meet all eligibility requirements and who are physically qualified may be discharged and reenlisted at any time. RC personnel may be discharged at any time for the purpose of enlisting in the AC with a [DD 368 Request for Conditional Release](#) approved by Navy Personnel Command (NAVPERSCOM) Reserve Enlisted Status Branch (PERS-913).

b. RC members accepted for voluntary recall to active duty, including the TAR Program, who require one of the following actions may be discharged and reenlisted in the RC on the same date of recall to active duty. Agreements by RC members to remain on active duty must be within the term of their current enlistment:

(1) OBLISERV in excess of the time remaining in their enlistment;

(2) Enlistment as extended by an operative extension; or

(3) Service obligation under the MSO.

c. RC members, for whom a request for a waiver of any nature must be submitted, are not eligible for reenlistment. Such cases are submitted for consideration to PERS-913 and must be processed per reference (i).

d. Applicants for immediate reenlistment will be questioned regarding any civil offenses since the date of their previous enlistment. If an applicant indicates an earlier arrest for any reason, the applicant must be processed for a waiver per reference (i).

e. RC members on inactive duty enlistment contracts, who are participating in the RC, and who are eligible for reenlistment, will be notified at least 6 months prior to the expiration of their enlistment or service obligation concerning such expiration and the procedures established for reenlistment processing.

f. The Defense Joint Military Pay System (DJMPS) recommends personnel reenlist at least 30 days prior to expiration of active obligated service (EAOS), or for RC, their EOS, to avoid possible pay stoppage or discrepancies.

g. Members should be counseled concerning possible loss of monetary benefits when reenlisting early. Consult reference (a) and this article for additional guidance.

6. **Early Reenlistments.** There is no requirement to forward request to Bureau of Naval Personnel (BUPERS) Community Management Support Branch (BUPERS-328) for early reenlistment.

a. The term of the new enlistment contract must equal or exceed the period of service for which the member is already obligated.

b. Members reenlisting under SRB or enlisted supervisor retention pay contracts must adhere to required additional OBLISERV requirements per reference (a) and references (i) through (l).

c. Members considering transferring education benefits should be counseled, as reenlisting early could interfere with transfer of those benefits outlined in reference (m).

7. **Conditional Reenlistments.** Conditional reenlistments for AC members require approval from BUPERS-328; RC members require BUPERS Reserve Enlisted Community Management Branch (BUPERS-352) approval as follows:

a. If a member has an aggregate total of 48 months of operative extensions on current enlistment, is eligible for reenlistment, and meets one of the following requirements:

(1) Is AC or TAR and requires additional active OBLISERV to enable transfer to the Fleet Reserve on a specific date prior to submission of such application;

Note: Exception - After receipt of the approval letter, the servicing transaction service center (TSC) or the administrative office is the approval authority for personnel who require additional active OBLISERV to enable transfer to the Fleet Reserve on a specific date.

(2) Has an approved application for transfer to special duty; or

(3) Requires additional OBLISERV to attend a Service school or to complete a tour of duty, whereas an extension of enlistment cannot be executed.

b. Favorable consideration will be given for immediate reenlistment when the member is not eligible to extend enlistment.

c. A member with a combat-incurred injury, illness, disease, or defect (as determined by the PEB) who has more than 6 years, but less than 10 years of service, may request to reenlist for a term of 4 years. This will render member eligible to transfer Post-9/11 GI Bill benefits to the member's dependent(s) per reference (m). The request must be submitted to BUPERS-328 for approval of a conditional reenlistment. Requests that do not meet the eligibility criteria of this subparagraph will be rejected. If BUPERS-328 recommends disapproval of the member's request, the request must be forwarded to the secretarial level, Assistant Secretary of the Navy for Manpower and Reserve Affairs (ASN MR&A) for final

decision, with a recommendation from the Chief of Naval Personnel (CHNAVPERS) via the Office of the Chief of Naval Operations (OPNAV) Military Personnel Plans and Policy Division (OPNAV N13). Reenlistment request must be approved prior to the member being retired or separated due to disability or other reason.

8. Criteria for Reentry Code RE-R1 (Recommendation for Preferred Reenlistment)

a. Use the table below for criteria of reentry code "RE-R1" (if "RE-R1" is not applicable use reentry code "RE-1" (eligible for reenlistment)) or as service record warrants):

Reenlistment Point	Pay grades	Qualifying Criteria
Less than 8 years of service (YOS)-AC/TAR members	E-3 and below	RE-R1 not applicable
	E-4	Pass E-5 advancement exam. Have overall trait average of 2.5 or above
12 YOS-RC members	E-5 and above	Overall trait average of 3.0 or above No performance mark below 2.0 in any trait
8 to 20 YOS-AC/TAR members 12 to 20 YOS-RC members, except TAR)	E-4 and below	RE-R1 not applicable
	E-5	RE-R1 not applicable for AC or TAR E-5 members being separated due to HYT
	E-5 and above	Overall trait average of 3.0 or above No performance mark below 2.0 in any trait
Beyond 20 YOS	E-6 and below	RE-R1 not applicable. E-6 RC members are authorized to 22 YOS
	E-7 and above	No performance mark below 2.0 in any trait during 48 months immediately preceding reenlistment or EAOS or EOS

b. AC members who are within 2 years of qualifying for transfer to the Fleet Reserve and RC members who are entitled to be credited with at least 18, but not more than 20, years of qualifying service, may not be separated or denied reenlistment

per of reference (h), unless separated under any other provision of law and per reference (n).

9. **Criteria for Reentry Code RE-4 (Ineligible for reenlistment)**. Use the table below for criteria of reentry code "RE-4" determination:

Pay Grades	Qualifying Criteria
All pay grades	Have had one general or special court-martial conviction, two summary court-martial convictions, or a combination of more than two non-judicial punishments or summary court-martial convictions in the year preceding EAOS/EOS or desired reenlistment date; RC personnel who fail to fully comply with initial active duty recall orders; Have been administratively reduced in rate, detached for cause, or issued a letter of substandard service; or Not recommended for reenlistment by the CO
E-1 and E-2	All who fail to meet professional growth criteria, except in special 2-year obligation programs
E-3	All who fail to meet professional growth criteria described in subparagraph 8a table, E-3 and below section
E-4 and below	Average of less than 2.0 in any trait during current enlistment on enlisted performance evaluations
E-5 and above	Received two or more marks of 2.0 or below in same trait on enlisted performance evaluations during past 36 months; unless specifically assigned due to PFA failures. If marks are the result of PFA failure, refer to reference (f); Received any mark of 1.0 or below (in any trait) within 1 year prior to EAOS/EOS or reenlistment request; or Less than 2.5 average in any trait during current enlistment

10. **Criteria for Discharge from Fleet Reserve for Enlistment or Reenlistment.** A member may be discharged from the Fleet Reserve for immediate enlistment or reenlistment in the AC, provided the following criteria are met and BUPERS Enlisted Community Management Division (BUPERS-32) approval is obtained:

a. Such enlistment or reenlistment is restricted to critical or non-critical ratings with critical NECs, and the member must meet all requirements of the Navy occupational standard;

b. Must not have been released from active duty status for more than 4 years and have a reentry code of "RE-2" (ineligible for reenlistment because of Fleet Reserve, retired (except for transfer to the temporarily disabled retirement list), commissioned officer, or warrant officer status); and

c. Enlistment or reenlistment must not exceed HYT standards per [MILPERSMAN 1160-120](#).

d. A signed acknowledgment by the member stating that participation in the Survivor Benefit Plan automatically ceases upon enlistment or reenlistment, and such benefits become those applicable to AC members. This acknowledgment is annotated on a [NAVPERS 1070/613 Administrative Remarks](#). The entry must be recorded and verified in the Navy Standard Integrated Personnel System (NSIPS) and the signed [NAVPERS 1070/613](#) is e-submitted to the member's official military personnel file (OMPF) per [MILPERSMAN 1070-320](#) as a "permanent" entry citing this article as the authority.

11. **Members Who May Not Be Discharged for Reenlistment.** The following members on active duty may not be discharged, prior to normal expiration of enlistment, and reenlisted:

a. Members in transit, following permanent change of station orders, where they would thereby become entitled to mileage payments in excess of those they would otherwise be entitled if discharged and reenlisted at their last permanent duty station. COs may discharge and reenlist members, where excess mileage payments are not involved, who were recommended for reenlistment by their former COs. As used in this subparagraph, "in transit" does not include members in the following status:

- (1) Temporary duty,
- (2) Temporary duty under instruction, or
- (3) Temporary additional duty under instruction.

b. Members who have submitted an application for, or who are in receipt of, authorization for transfer to the Fleet Reserve; if members have enough OBLISERV for such transfer see paragraph 7 of this article for conditional reenlistment;

c. Members who have been selected for warrant or commissioned grade in any of the Military Services, whose expiration of enlistment (including extensions) is subsequent to date of appointment or commissioning;

d. Members who are pursuing a course of instruction leading to a commission, except as specifically provided in other instructions issued by Commander, NAVPERSCOM or Commander, Naval Education and Training Command;

e. Members temporarily assigned to a station for humanitarian reasons must request to be discharged for reenlistment via [NAVPERS 1306/7 Electronic Personnel Action Request](#) and must be approved by BUPERS-328 with concurrence from the NAVPERSCOM HUMMS Reassign/Early Returns Coordinator (PERS-40HH).

f. Members undergoing investigation for alleged offenses, awaiting non-judicial punishment or trial by courts-martial, undergoing non-judicial punishment, or serving a sentence by courts-martial, including probation with respect to a suspended punitive discharge or confinement; or

g. Members who have rendered themselves ineligible per reference (f).

12. **Discharge After Executing Agreement.** Members who have executed agreements to extend their enlistments may be discharged **prior to the date the extension would become operative** and reenlisted per this article. The term for which they reenlist must be **equal to, or greater than, the total obligation, including the extension being canceled.** Review the OBLISERV requirements for SRB and recoupment procedures outlined in the most recent SRB naval administrative (message).

13. **Procedures for Personnel Assigned to Individual Ready Reserve (IRR)/Active Status Pool (ASP)**. Members of the IRR/ASP may be reenlisted on a case-by-case basis by mail, in person, or e-mail. In lieu of a physical examination, the member must submit a signed statement that states, to the best of the member's knowledge and belief, the member's physical condition is substantially the same as when the member was last physically examined by the Navy or any Department of Defense-credentialed medical officer. In addition, the member can provide a copy of his or her most recent separation physical or most recent physical examination from his or her personal physician. The **oath of allegiance**, which is mandatory, must be administered by a commissioned officer of any component of the Navy, Marine Corps, Army, Air Force, Space Force, or Coast Guard (active, inactive, or retired). NAVPERSCOM IRR Force Management Division (PERS-93) is the final approval authority for all IRR reenlistment requests.

14. **Payment for Unused Leave, Recoupment of Reenlistment Bonus, and Other Monetary Entitlements**

a. Information on reenlistment bonus, mileage, or lump-sum payment for unused leave pertaining to reenlistment is contained in reference (c). Members must be fully and properly apprised of monetary entitlements.

b. A member serving on a Navy Reserve enlistment contract on active duty desiring discharge and reenlistment may have the unearned portion of the bonus (if paid) recouped per references (a) and (1).

15. **Location of Reenlistment**. Reenlistment under continuous service conditions may be effected at the following locations:

a. Onboard the activity from which discharged within 24 hours following discharge. Reenlistment may be effected aboard a ship while at sea, provided the necessary pre-reenlistment checklist, including physical examination, has been met. A member transferred to an activity for discharge may be reenlisted per this article. Upon being reenlisted onboard the activity to which permanently attached, such member will be retained on board for duty. Members reenlisting at the activity to which transferred for discharge must be made available for orders per MILPERSMAN 1306-1700.

b. After more than 24 hours following discharge, reenlistment must be effected only at a Navy recruiting station, unless otherwise authorized by specific instructions of BUPERS-328. Reenlistment may be effected for the terms specified in recruiting instructions, but must be effected within the time period prescribed in continuous service credit subparagraphs 2c through 2c(2). For conditions and entitlement to any bonuses consult appropriate directives.

16. **Official Military Personnel File (OMPF) Update Upon Reenlistment.** Servicing personnel offices will ensure the electronic service record (ESR) reenlistment closeout function is executed when a member reenlists and the following ESR documents are submitted to the member's OMPF along with the reenlistment contract:

a. [NAVPERS 1070/880](#) Awards Record (generated through NSIPS);

b. [NAVPERS 1070/881](#) Training, Education, and Qualifications History (generated through NSIPS);

c. [NAVPERS 1070/886](#) Member Data Summary (generated through NSIPS);

d. [NAVPERS 1070/605](#) History of Assignments (generated through NSIPS); and

e. Permanent [NAVPERS 1070/613](#) Administrative Remarks created at time of reenlistment (only "permanent" entries are filed to the OMPF).

17. **Not Eligible for Reenlistment**

a. Members who do not meet all the aforementioned requirements may not be enlisted or reenlisted without the consent of BUPERS-32.

b. RC members may not reenlist in the AC without approval from BUPERS-32.

c. TAR members may not reenlist in the AC (BRCL-11), likewise AC into the TAR Community (BRCL-32), without approval from BUPERS-32 or BUPERS-352, as appropriate.

18. **Improper Reenlistment**

a. Reenlistment without the CO's or OIC's retention recommendation is considered improper. Retention recommendation by a member's CO or OIC is found in block 47 of [NAVPERS 1616/26](#) Evaluation Report & Counseling Record (E1-E6). Chief petty officers are considered recommended for retention, unless specifically not recommended in block 41 of [NAVPERS 1616/27](#) Evaluation and Counseling Record (E7-E9) or a recommendation is later withdrawn by a member's CO or OIC via naval correspondence.

b. COs and OICs, servicing TSCs, personnel offices, and the individual member must consider the following:

(1) COs and OICs must ensure such improper reenlistments do not occur.

(2) Servicing TSCs, personnel offices, and their respective supporting offices must provide oversight to preclude erroneous and fraudulent entries into personnel systems, such as NSIPS, from occurring.

(3) A reenlistment contract which has been determined to be improper is not binding on the Department of the Navy. A member may be separated on the basis of erroneous reenlistment per [MILPERSMAN 1910-130](#) and or the best interest of the Service per [MILPERSMAN 1910-164](#).

(4) Reenlistment contracts with clerical errors do not invalidate the contract and are not considered improper reenlistments.

(a) Corrections and or changes to military human resource records filed in the OMPF must be directed to paragraph 5 of [MILPERSMAN 1070-020](#) or paragraph 4 of [MILPERSMAN 1070-080](#).

(b) Members must petition the Board for Correction of Naval Records to request correction to the term of enlistment (number of years), date of reenlistment RADO (months and or days), home of record, and other changes.

(5) Immediate superiors in command (ISIC), type commanders (TYCOM), and commands may direct an administrative investigation, per reference (o), concerning a reenlistment, if that reenlistment is suspected to have occurred under improper circumstances.

19. **Responsibilities**

a. Director, OPNAV N13 is responsible for approval of enlisted force management policy in support of the Deputy Chief of Naval Operations for Personnel, Manpower, and Training (CNO N1). As such, OPNAV N13 is the approving authority for reenlistment policy and exceptions to policy.

b. OPNAV Head, Enlisted Force Shaping Plans and Policy Branch (OPNAV N132) is responsible for developing enlisted force management policy in support of CNO N1. As such, OPNAV N132 is responsible for reenlistment policy development and execution oversight.

c. BUPERS Director, BUPERS-32 is responsible for managing overall enlisted community health at the echelon 2 level. As such, BUPERS-32 will be consulted on reenlistment policy execution issues and coordination with OPNAV N13 for exception to policy decisions.

(1) BUPERS-328 manages reenlistment for AC members and BUPERS-352 manages Selected Reserve and TAR members.

(2) NAVPERSCOM Enlisted Performance and Separations Branch (PERS-832) manages separation matters.

(3) NAVPERSCOM Enlisted Retirements Branch (PERS-836) manages Fleet Reserve and retirement.

(4) PERS-913 manages Reserve enlisted matters.